

Re: Failure to Respond — Public Information Act Request Submitted May 2, 2026 —Faith Marie Bannert Employment Records

From: mcpir@co.matagorda.tx.us
To: [REDACTED]; rdeleon@co.matagorda.tx.us
Cc: msloan@co.matagorda.tx.us
Date: May 26, 2026 07:54 UTC

Good morning Mr. [REDACTED],

My name is Jenna Fortenberry, and I handle all Public Information Act requests for Matagorda County.

I have reviewed our records and do not see where your original request was received by our office. Can you please advise which email address the request was sent to on May 2, 2026?

I would be happy to process your request. However, please note that as of today, Matagorda County has ten (10) business days to respond to your request in accordance with the Texas Public Information Act, Texas Government Code Chapter 552. While I may not be able to complete the request by tomorrow as requested, I will make every effort to process it as quickly as possible.

Please feel free to resend your request directly to this email address to ensure receipt and processing.

Regards,
Jenna Fortenberry
Public Information Officer
1700 7th Street, Room 305
Bay City, Texas 77414
(979) 244-7645 Telephone
mcpir@co.matagorda.tx.us

Please note: Matagorda County actively blocks certain internet traffic originating from outside of North America as part of its cybersecurity protections. If your email is blocked or rejected, please contact your email provider (Gmail, Yahoo, Hotmail, etc.) and request assistance to ensure your emails are routed through U.S./North American servers when communicating with Matagorda County.

County IT has identified an increase in emails being routed through Europe and other foreign regions, which may result in the emails being automatically blocked by the County's

security system.

If you receive a message indicating your email was blocked due to suspected SPAM activity, please contact the Matagorda County Attorney's Office and provide your full email address so the issue can be reviewed.

From: [REDACTED]
<[REDACTED]>
To: rdeleon@co.matagorda.tx.us
Cc: msloan@co.matagorda.tx.us
Date: Sun, 24 May 2026 23:22:31 -0500
Subject: Failure to Respond — Public Information Act Request Submitted May 2, 2026 — Faith Marie Bannert Employment Records

May 24, 2026

Matagorda County — Custodian of Records
rdeleon@co.matagorda.tx.us

RE: Failure to Respond — Public Information Act Request Submitted May 2, 2026 — Faith Marie Bannert Employment Records

I submitted a Texas Public Information Act request to Matagorda County on May 2, 2026, via email to this address. The subject of the request was employment records for Faith Marie Bannert, a former Jailer who held a Temporary Jailer License and worked at Matagorda County from approximately December 6, 2023 through March 19, 2024.

Under Tex. Gov't Code §552.228(a), a governmental body must respond to a public information request within ten (10) business days of receipt. That deadline was May 15, 2026. As of today, May 24, 2026 — nine calendar days and five business days after the deadline — Matagorda County has provided no response of any kind: no records, no written notification of claimed exceptions, no request for additional time, and no referral to the Texas Attorney General for an opinion.

This is a statutory violation. Tex. Gov't Code §552.228 imposes an affirmative obligation to respond. A governmental body that neither produces records nor invokes a statutory exception within ten business days has forfeited the right to assert most exceptions. See Tex. Gov't Code §552.302 ("If a governmental body does not request an attorney general decision . . . the information is presumed to be subject to required public disclosure and

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must be released.").

I demand the following, no later than close of business May 27, 2026:

1. Immediate production of all records responsive to my May 2, 2026 request; OR
2. A written statement of the specific statutory basis for withholding each category of records, with a simultaneous request for an Attorney General opinion under §552.301.

Failure to respond by May 27, 2026 will result in:

- A formal complaint to the Texas Attorney General's Open Government Division under §552.3215;
- A civil penalty referral (up to \$1,000 per violation per day);
- A mandamus action in district court under §552.321.

A copy of this letter is being transmitted to the Texas Attorney General's Open Government Division concurrently.

Respectfully submitted,

[REDACTED]

[REDACTED], Columbus,
TX 78934

[REDACTED]

[REDACTED]